GOVERNMENT OF ZAMBIA

STATUTORY INSTRUMENT NO. 11 of 2026

The Tolls Act
(Laws, Volume 31, Cap. 465)

The Tolls (Tom Mtine Toll Plaza) Regulations, 2026

IN EXERCISE of the powers contained in section 25 of the Tolls Act, the following Regulations are made:

Title and commencement

1. (1) These Regulations may be cited as the Tolls (Tom Mtine Toll Plaza) Regulations, 2026.

(2) These Regulations shall come into operation on the issuance of the partial practical completion certificate in accordance with the concession agreement.

Interpretation

2. In these Regulations, unless the context otherwise requires—

"Agency" has the meaning assigned to the word in the Act;

"bulk toll discount" means a wholesale price discount applicable to a road user who purchases tolls in bulk;

"concession agreement" means the agreement entered into between the concessionaire and the contracting authority for the design, financing, construction, operation, maintenance and transfer of the Sakania Border Post infrastructure, the Ndola-Mufulira Road and the access road to the Sakania Border Post on the Copperbelt Province of Zambia;

"contracting authority" means the Agency, the Ministry responsible for Finance and National Planning and the Ministry responsible for Commerce, Trade and Industry;

"concessionaire" means Jaswin Ports Limited;

"frequent road user" means a Zambian registered vehicle that uses a toll road for a specified minimum number of times in a specified period as determined by the concessionaire;

Copies of this Statutory Instrument can be obtained from the Government Printer, P.O. Box 30136, 10101 Lusaka. Price K8.00 each.

"frequent road user discount" means a toll tariff granted to a regular road user at a designated inland toll point for a specified period;

"independent consultant" means a person appointed as an independent consultant in accordance with the concession agreement;

"local user" means a road user driving a Zambian registered vehicle domiciled within a ten kilometre radius of an inland toll point, excluding a port of entry;

"local user discount" means a toll levied on a local user to a specific toll point for a specified period of time;

"partial practical completion certificate" means a certificate issued by an independent consultant or the contracting authority to the concessionaire when the tests conducted on the Ndola-Sakania Road and the Tom Mtine Toll Plaza are verified and the Ndola-Sakania Road and Tom Mtine Toll Plaza are confirmed to be safe and reliable for the commencement of commercial operations;

"toll" has the meaning assigned to the word in the Act;

"toll point" means a point designated for the collection of tolls under regulation 3; and

"toll road" has the meaning assigned to the words in the Act.

Designation of toll road and toll point

3. (1) The Ndola Sakania Road is designated as a toll road.

(2) The concessionaire shall operate and maintain the toll road referred to under subregulation (1) in accordance with the Act, these Regulations and the concession agreement.

(3) The Tom Mtine Toll Plaza is designated as a toll point from where a toll shall be collected.

Payment of toll

4. (1) A driver of a vehicle in the Republic specified in the First Schedule shall, at the point of passing through the toll point, pay to the concessionaire a toll set out in the First Schedule.

(2) Despite subregulation (1), the concessionaire may give a discount to a frequent road user or a local road user of the toll road as set out in the Second Schedule.

Bulk discount rate

5. A road user who buys tolls in bulk shall buy the tolls at the bulk toll discount rate set out in the Second Schedule.

FIRST SCHEDULE
(*Regulation* 4) (1)

TOLLS

Classification	*Type of Vehicle*	*Toll Fee (ZMW)*
(a) Small vehicle	Small vehicle (up to 3.5 tons) (including car, van and minibus up to 16 seats) (single access)	0.00
(b) Minibus	Minibus with 2 axles (more than 3.5 tons to 6.5 tons) (17 to 30 seats) (single access)	0.00
(c) Light vehicle	Light vehicle with 2 axles excluding minibus (more than 3.5 tons to 6.5 tons) (single access)	0.00
(d) Bus	Bus with 2 3 axles (more than 6.5 tons) (rigid) (single access) above 30 seats	100.00
(e) Medium heavy	Medium heavy vehicle with 2 3 axles vehicle exc vehicle exc luding bus above (more than 6.5 tons) (rigid) (single access)	850.00
(f) Heavy vehicle	Heavy vehicle with 4 axles and above (single access)	1,350.00
(g) Abnormal load vehicle	Abnormal load vehicle (single access)	2,450.00

SECOND SCHEDULE
(*Regulations* 4(2) *and* 5)

A. LOCAL USER DISCOUNT TOLL RATES

Type of vehicle	*Toll Fee (ZMW*
(a) Private small vehicle (up to 3.5 tons) (single access)	0.00
(b) Private small vehicle (up to 3.5 tons) (upfront monthly payment)	0.00
(c) Light vehicle with 2 axles (more than 3.5 tons to 6.5 tons) (single access)	0.00
(d) Light vehicle with 2 axles (more than 3.5 tons to 6.5 tons) (multiple access) upfront monthly payment	0.00

B. BULK DISCOUNT OR WHOLESALE TOLL RATE

Description	*Discount Rate*
Tolls worth ZMW1000.00 and above	5%

C. FREQUENT ROAD USER DISCOUNT TOLL RATES

Type of vehicle	*Toll Fee (ZMW)*
(a) Private small vehicle (up to 3.5 tons)	0. 00
(b) Light vehicle with 2 axles (more than 3.5 tons to 6.5 tons)	0.00

C. L. MILUPI,
Minister of Infrastructure, Housing and Urban Development

LUSAKA
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